

Court No. - 29

Case :- WRIT - C No. - 17790 of 2019

Petitioner :- Neeraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sameer Srivastava

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

Heard Sri Sameer Srivastava, learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel for respondent Nos. 2 and 3.

The petitioner has filed this petition simply seeking direction to consider his representation dated 04.04.2019 (Annexure No.1).

A perusal of the said representation does not make out any case which may be considered by the Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. to whom it is addressed.

Sri Sameer Srivastava, learned counsel for the petitioner argues that the petitioner is actually disputing the correctness of the electricity bill dated 03.05.2019.

The matter regarding correctness of the electricity bill is to be dealt by the Executive Engineer concerned in accordance with clause 6.5 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with the direction to the petitioner to raise his grievance by means of a fresh representation addressed to the Executive Engineer and in case any such representation is filed by him within a period of 2 weeks from today, the Executive Engineer shall consider and decide the same by a speaking order in accordance with law most expeditiously, if possible, within a period of 6 weeks thereafter and for a period of 8 weeks or till the decision of the representation, whichever is earlier, the electricity of the petitioner shall not be disconnected provided petitioner deposits a sum of Rs. 50,000/- within 2 weeks along with the representation.

The writ petition stands **disposed off**.

Order Date :- 23.5.2019

Nirmal